

CONSULTING AGREEMENT

This Agreement is entered into as of Mar 7, 2025 (the "Effective Date") by and between Fulcrum Labs, with its principal place of business in Atlanta, GA ("Client"), and Pinnacle Industries, with its principal place of business in Atlanta, GA ("Provider"). The parties agree as follows:

SECTION A. INTELLECTUAL PROPERTY

All work product created by Pinnacle Industries specifically for Fulcrum Labs under this Agreement shall be the sole property of Fulcrum Labs upon full payment of the applicable fees. Pinnacle Industries retains ownership of its pre-existing materials, tools, and methodologies.

SECTION B. SCOPE OF SERVICES

Pinnacle Industries shall provide the services described in Exhibit A (the "Services") to Fulcrum Labs in a professional and workmanlike manner, consistent with industry standards. Any changes to the scope of the Services must be agreed in writing by both parties before work begins.

SECTION C. CONFIDENTIALITY

Each party agrees to hold in strict confidence all non-public information disclosed by the other party in connection with this Agreement, and to use such information solely to perform its obligations hereunder. This obligation survives termination of this Agreement for a period of 12 months.

SECTION D. COMPENSATION

In consideration of the Services, Fulcrum Labs shall pay Pinnacle Industries fees not to exceed \$22,000 per invoice period. All invoices are payable within 15 days of receipt. Amounts unpaid after the due date accrue interest at the lesser of 1.5% per month or the maximum rate permitted by law.

SECTION E. LIMITATION OF LIABILITY

Except for breaches of confidentiality, neither party shall be liable for any indirect, incidental, special, or consequential damages arising out of this Agreement. Each party's aggregate liability shall not exceed the total fees paid or payable by Fulcrum Labs in the twelve months preceding the claim.

SECTION F. TERM AND RENEWAL

This Agreement shall commence on the Effective Date and continue for an initial term of 12 months, unless earlier terminated as provided herein. The Agreement will renew automatically for successive terms of equal length unless either party gives written notice of non-renewal at least 15 days before the end of the then-current term.

SECTION G. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of the State of New York, without regard to its conflict of laws principles. The parties consent to the exclusive jurisdiction of the state and federal courts located in New York.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

Grace Fischer, Fulcrum Labs

Liam Santos, Pinnacle Industries